Fill in this information to identify the case:

Debtor 1 New England Motor Freight, Inc.

Debtor 2 (Spouse, if filing) _____

United States Bankruptcy Court for the: United States Bankruptcy Court - District of New Jersey

Case number 19-12809

RECEIVED
5/22/2019 4:47:49 PM (Eastern Time)
US BANKRUPTCY COURT-DRC
Claim No. ECN-245

Official Form 410

Proof of Claim

04/16

Read the instructions before filling out this form. This form is for making a claim for payment in a bankruptcy case. Do not use this form to make a request for payment of an administrative expense other than a claim arising under section 503(b)(9). Make such a request according to 11 U.S.C. § 503.

Filers must leave out or redact information that is entitled to privacy on this form or on any attached documents. Attach redacted copies of any documents that support the claim, such as promissory notes, purchase orders, invoices, itemized statements of running accounts, contracts, judgments, mortgages, and security agreements. **Do not send original documents;** they may be destroyed after scanning. If the documents are not available, explain in an attachment.

A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.

Fill in all the information about the claim as of the date the case was filed. That date is on the notice of bankruptcy (Form 309) **that you received.**

Part 1: Identify the Claim

1. **Who is the current creditor?**

   Manitoulin Transport Inc
   Name of the current creditor (the person or entity to be paid for this claim)

   Other names the creditor used with the debtor _____

2. **Has this claim been acquired from someone else?**

   ☑ No
   ☐ Yes. From whom? _____

3. **Where should notices and payments to the creditor be sent?**

   Federal Rule of Bankruptcy Procedure (FRBP) 2002(g)

Where should notices to the creditor be sent?	**Where should payments to the creditor be sent?** (if different)
Manitoulin Transport Inc PO Box 390 154 Hwy 540B Gore Bay Ontario P0P 1H0 canada 7052822269 dkeller@manitoulintransport.com	

   Uniform claim identifier for electronic payments in chapter 13 (if you use one):

   _

4. **Does this claim amend one already filed?**

   ☑ No
   ☐ Yes. Claim number on court claims registry (if known) _____ Filed on _____ MM / DD / YYYY

5. **Do you know if anyone else has filed a proof of claim for this claim?**

   ☑ No
   ☐ Yes. Who made the earlier filing? _____

Part 2: Give Information About the Claim as of the Date the Case Was Filed

6. **Do you have any number you use to identify the debtor?**
☑ No
☐ Yes. Last 4 digits of the debtor's account or any number you use to identify the debtor: _____

7. **How much is the claim?** $ $60,413.20 . **Does this amount include interest or other charges?**
☑ No
☐ Yes. Attach statement itemizing interest, fees, expenses, or other charges required by Bankruptcy Rule 3001(c)(2)(A).

8. **What is the basis of the claim?**
Examples: Goods sold, money loaned, lease, services performed, personal injury or wrongful death, or credit card.
Attach redacted copies of any documents supporting the claim required by Bankruptcy Rule 3001(c).
Limit disclosing information that is entitled to privacy, such as health care information.
Services Performed

9. **Is all or part of the claim secured?**
☑ No
☐ Yes. The claim is secured by a lien on property.

Nature of property:
☐ Real estate. If the claim is secured by the debtor's principal residence, file a *Mortgage Proof of Claim Attachment* (Official Form 410-A) with this *Proof of Claim.*
☐ Motor vehicle
☐ Other. Describe: _____

Basis for perfection: _____
Attach redacted copies of documents, if any, that show evidence of perfection of a security interest (for example, a mortgage, lien, certificate of title, financing statement, or other document that shows the lien has been filed or recorded.)

Value of property: $_____
Amount of the claim that is secured: $_____
Amount of the claim that is unsecured: $_____ (The sum of the secured and unsecured amounts should match the amount in line 7.)

Amount necessary to cure any default as of the date of the petition: $_____

Annual Interest Rate (when case was filed)_____%
☐ Fixed
☐ Variable

10. **Is this claim based on a lease?**
☑ No
☐ Yes. **Amount necessary to cure any default as of the date of the petition.** $_____

11. **Is this claim subject to a right of setoff?**
☑ No
☐ Yes. Identify the property: _____

12. **Is all or part of the claim entitled to: (i) priority under 11 U.S.C. § 507(a), or (ii) administrative expense under 11 U.S.C. § 503(b)(9)?**

A claim may be partly priority and partly nonpriority. For example, in some categories, the law limits the amount entitled to priority.

☑ No

☐ Yes. *Check all that apply:*

	Amount entitled to priority
☐ Domestic support obligations (including alimony and child support) under 11 U.S.C. § 507(a)(1)(A) or (a)(1)(B).	$_____
☐ Up to $2,850* of deposits toward purchase, lease, or rental of property or services for personal, family, or household use. 11 U.S.C. § 507(a)(7).	$_____
☐ Wages, salaries, or commissions (up to $12,850*) earned within 180 days before the bankruptcy petition is filed or the debtor's business ends, whichever is earlier. 11 U.S.C. § 507(a)(4).	$_____
☐ Taxes or penalties owed to governmental units. 11 U.S.C. § 507(a)(8).	$_____
☐ Contributions to an employee benefit plan. 11 U.S.C. § 507(a)(5).	$_____
☐ Other. Specify subsection of 11 U.S.C. § 507(a)(____) that applies.	$_____
☐ Value of goods received by the debtor within 20 days before the date of commencement of the case. 11 U.S.C. § 503(b)(9).	$_____

* Amounts are subject to adjustment on 04/01/19 and every 3 years after that for cases begun on or after the date of adjustment.

Part 3: Sign Below

The person completing this proof of claim must sign and date it. FRBP 9011(b).

If you file this claim electronically, FRBP 5005(a)(2) authorizes courts to establish local rules specifying what a signature is.

A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.

Check the appropriate box:

☐ I am the creditor.
☑ I am the creditor's attorney or authorized agent.
☐ I am the trustee, or the debtor, or their authorized agent. Bankruptcy Rule 3004.
☐ I am a guarantor, surety, endorser, or other codebtor. Bankruptcy Rule 3005.

I understand that an authorized signature on this *Proof of Claim* serves as an acknowledgment that when calculating the amount of the claim, the creditor gave the debtor credit for any payments received toward the debt.

I have examined the information in this *Proof of Claim* and have a reasonable belief that the information is true and correct.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on date 5/22/2019
MM / DD / YYYY

/s/ Daphne Keller
Signature

Print the name of the person who is completing and signing this claim:

Daphne Keller
Corporate Accounts Receivable Manager
Manitoulin Transport Inc
PO Box 390
Gore Bay Ontario P0P 1H0
canada
7052822269
dkeller@manitoulintransport.com

Claim: 245-1 Dated: 5/22/2019 20091-511

Daphne Keller <dkeller@manitoulintransport.com>

Fwd: MANI/NEMF Totals

4 messages

Cindy Madore <cmadore@manitoulintransport.com> Mon, May 20, 2019 at 1:35 PM
To: Daphne Keller/Accounts Receivable/Manitoulin <dkeller@manitoulintransport.com>

I am guessing you have done one of these before

---------- Forwarded message ----------
From: <JMillet@nemf.com>
Date: Mon, May 20, 2019 at 1:18 PM
Subject: Re: MANI/NEMF Totals
To: Cindy Madore <cmadore@manitoulintransport.com>

Good Afternoon Cindy.

Please enter the amount into this link so it can be viewed by the court.

https://www.donlinrecano.com/Clients/nemf/Index

Joe Millet
Traffic Manager
New England Motor Freight
1-71 North Ave East
Elizabeth NJ 07201
908-965-0100 ext 51283

From: Cindy Madore <cmadore@manitoulintransport.com>
To: Joe Millet JMillet <JMillet@nemf.com>
Date: 05/10/2019 01:46 PM
Subject: Re: MANI/NEMF Totals

Yes, when will it be paid?

On Fri, May 10, 2019 at 1:19 PM <JMillet@nemf.com> wrote:
Good Afternoon , you agree with the 60,413.20 ?

Joe Millet
Traffic Manager
New England Motor Freight
1-71 North Ave East
Elizabeth NJ 07201
908-965-0100 ext 51283

From: Cindy Madore <cmadore@manitoulintransport.com>
To: Joe Millet JMillet <JMillet@nemf.com>
Date: 05/10/2019 10:46 AM
Subject: Re: MANI/NEMF Totals

Okay, when can we expect that to be paid?

On Fri, May 10, 2019 at 8:47 AM <JMillet@nemf.com> wrote:
after adding charges to those bills here is what it looks like

NEMF TOTAL $422,427.64

MANI TOTAL $482,840.84

Difference **$60,413.20** NEMF Will pay

Joe Millet
Traffic Manager
New England Motor Freight
1-71 North Ave East

Claim: 245-1 Dated: 5/22/2019 20091-511

Elizabeth NJ 07201
908-965-0100 ext 51283

From Cindy Madore <cmadore@manitoulintransport.com>
To Joe Millet JMillet <JMillet@nemf.com>
Date 05/10/2019 08:43 AM
Subject Re: MANI/NEMF Totals

Yes

On Fri, May 10, 2019 at 8:43 AM <JMillet@nemf.com> wrote:
in the attachments there were several pros we were waiting for the charges on, will you accept our charges on these?

NEMF PRO	MANI PRO	TOTAL	PAID	DUE	NOTES
	86875616	29126518			need rates
	86875704	300218103			need rates
	86875710	25491034			DPO, please advise?
	86875749	26385569			DPO, please advise?
	86876097	26385582			DPO, please advise?
	86876263	2709780			need rates
	86876523	26385594			DPO, please advise?
	86877023	72757916			need rates
	86877200	25491638			DPO, please advise?
	86877243	27317805			need rates, per MANI this is ppd
	25805590	93831357			need rates, this was a pick up request by Mani
	86877572	23840271			DPO, please advise?
	86878770	28351505	112		DPO, please advise
	86878771	28351506	150.92		SP, please advise
	86878772	28351507	84.79		DPO, please advise
	86878773	28351508	128.56		need rates
	86878774	94330137	81.22		DPO, please advise
	26569645	93833708	89.8		SP, please advise

Joe Millet
Traffic Manager
New England Motor Freight
1-71 North Ave East
Elizabeth NJ 07201
908-965-0100 ext 51283

From Cindy Madore <cmadore@manitoulintransport.com>
To Joe Millet JMillet <JMillet@nemf.com>
Cc Barret Wright <BaWright@manitoulintransport.com>, JGaspar@nemf.com
Date 05/10/2019 08:31 AM
Subject Re: MANI/NEMF Totals

We will agree to this.

On Thu, May 9, 2019 at 10:48 AM <JMillet@nemf.com> wrote:
Yes, please go thru the attachments and comment if you agree or you don't

Joe Millet
Traffic Manager
New England Motor Freight
1-71 North Ave East
Elizabeth NJ 07201
908-965-0100 ext 51283

From Cindy Madore <cmadore@manitoulintransport.com>
To Joe Millet JMillet <JMillet@nemf.com>
Cc Barret Wright <BaWright@manitoulintransport.com>, JGaspar@nemf.com

Claim: 245-1 Dated: 5/22/2019 20091-511

Date: 05/08/2019 04:08 PM
Subject Re: MANI/NEMF Totals

Just to clarify, if we were to agree to the figures on this email NEMF would still be owing Manitoulin 64108.63.

On Wed, May 8, 2019 at 3:35 PM <JMillet@nemf.com> wrote:
this attachment has the amount we agree to pay as freight charges, 438,376.80

Refunds we agree to $ 44,483.86 in refunds, only four rejected for need of info

16703
16615
16914
16915

this attachment is what MANI owes NEMF from 2018 $ 90,802.53

this attachment is what MANI owes NEMF from 2019 $ 250,868.00

this attachment refunds due NEMF $ 77,081.50

Joe Millet
Traffic Manager
New England Motor Freight
1-71 North Ave East
Elizabeth NJ 07201
908-965-0100 ext 51283

–
Cindy Madore
Accounts Manager
Manitoulin Transport
877-661-6679 ext 82278
fax 705-282-1414
cmadore@manitoulintransport.com

–
Cindy Madore
Accounts Manager
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877-661-6679 ext 82278
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cmadore@manitoulintransport.com

–
Cindy Madore
Accounts Manager

Claim: 245-1 Dated: 5/22/2019 20091-511

Manitoulin Transport
877-661-6679 ext 82278
fax 705-282-1414
cmadore@manitoulintransport.com

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Cindy Madore
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Cindy Madore
Accounts Manager
Manitoulin Transport
877-661-6679 ext 82278
fax 705-282-1414
cmadore@manitoulintransport.com

Daphne Keller <dkeller@manitoulintransport.com> Tue, May 21, 2019 at 8:11 AM
To: Cindy Madore <cmadore@manitoulintransport.com>

Not on line before, But I will confirm how this is done today. So from what I'm reading in this email NEMF owed Manitoulin more then we owed them ?

Daphne

[Quoted text hidden]
--
Daphne Keller
Corporate Accounts Receivable Manager
Manitoulin Group of Companies
1-800-265-1485 Ext 82285

Cindy Madore <cmadore@manitoulintransport.com> Tue, May 21, 2019 at 8:18 AM
To: Daphne Keller <dkeller@manitoulintransport.com>

From their paperwork yes, so we agreed to the amount. I verified this with Cliff before I agreed to it. Joe did send me a little more info after which I will send to you

[Quoted text hidden]

Cindy Madore <cmadore@manitoulintransport.com>
To: Daphne Keller/Accounts Receivable/Manitoulin <dkeller@manitoulintransport.com>

---------- Forwarded message ---------
From: <JMillet@nemf.com>
Date: Mon, May 20, 2019 at 1:38 PM
Subject: Re: MANI/NEMF Totals
To: Cindy Madore <cmadore@manitoulintransport.com>

Yes , you would log into the site, on the left you would click on "proof of claim" which will take you to the page below.

Claim: 245-1 Dated: 5/22/2019 20091-511

Active Case Central

NEMF
EXCELLENCE IN MOTION!®

DONLIN R

- Home
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- Contact Information
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- First Day Orders
- Notice Lists

Location to File Proof(s) of Claim

If Proof of Claim is sent by mail, send to:

Donlin, Recano & Company, Inc.
Re: New England Motor Freight, Inc., et al.
P.O. Box 199043
Blythebourne Station
Brooklyn, NY 11219

If Proof of Claim is sent by Overnight Courier or Hand Delivery, send to:

Donlin, Recano & Company, Inc.
Re: New England Motor Freight, Inc., et al.
6201 15th Avenue
Brooklyn, NY 11219

If you wish to file your claim electronically with Donlin, Recano, please click HERE.

Please file proof(s) of claim, if any, via US Mail, overnight courier or other hand delivery system, or electronic above. Facsimile and e-mail delivery methods are not acceptable. You must either file an originally executed as indicated above or electronically. If you file an originally executed proof of claim and would like a copy of returned to you as proof of receipt, please enclose an additional copy of the proof(s) of claim and a self-addr paid envelope.

Please click Here to download a Proof of Claim Form.

Joe Millet
Traffic Manager
New England Motor Freight
1-71 North Ave East
Elizabeth NJ 07201
908-965-0100 ext 51283

From: Cindy Madore <cmadore@manitoulintransport.com>
To: Joe Millet JMillet <JMillet@nemf.com>
Date: 05/20/2019 01:30 PM
Subject: Re: MANI/NEMF Totals

Do I need to log in to do this?
[Quoted text hidden]
[Quoted text hidden]